

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY METCALF SCHWARTZ,

Petitioner

VS.

GRACE MARIA SCHWARTZ,

Respondent

) Case Number: FDI-18-790180

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, SPOUSAL OR PARTNER
SUPPORT, ATTORNEY FEES AND COSTS, PROPERTY CONTROL, REMOVE THE PETITIONER
FROM THE APARTMENT, CHARACTERIZE COMM

TENTATIVE RULING

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by
Zoom video. If a party chooses to appear by video, that party must abide by the Notice and
Instructions for Remote Appearances in San Francisco Family Court set forth above.**

A. Procedural History

- 1) The parties are Petitioner Anthony Metcalf Schwartz and Respondent Grace Maria Schwartz.
- 2) On 7/9/26, Respondent filed an ex parte Request for Order seeking enforcement of spousal support, exclusive use and control of the community leasehold and related relief, and attorney's fees and costs.
- 3) On 7/9/26, the Court denied Respondent's request for emergency relief and set the matter for hearing on 8/18/26. The Court ordered Respondent to personally serve Petitioner with all documents filed with the Request for Order (see FL-300).
- 4) There is no Proof of Service on file indicating Petitioner was personally served with Respondent's 7/9/25 Request for Order.
- 5) Petitioner did not file a Responsive Declaration.

1 6) On 8/13/26, Respondent filed a Non-Service Report indicating four unsuccessful attempts at
2 service.

3 7) At the prior 8/18/26 hearing, counsel for Respondent appeared and informed the Court that he
4 filed a request for alternative service on 8/13/26, which was still pending. The Court therefore
5 continued the matter to 8/25/26 as it had not yet received the 8/13/26 filing.

6 **B. Findings and Order**

7 1) **The parties are ordered to appear.**
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29